

Second, assuming arguendo that there was a bankruptcy stay triggered by Plaintiff Abpikar's July 24, 2026 bankruptcy petition that ever applied to this action—and it never did, *see Shah, supra*—any such stay has now expired. As Defendant points out in its Reply papers, because Plaintiff Abpikar has already filed for bankruptcy twice in the past year—he previously filed for Chapter 13 bankruptcy on February 12, 2026 in Case No.:26-50218 SLJ⁶ and that case was dismissed on March 26, 2026⁷—the automatic stay as to his July 24, 2026 bankruptcy terminated within 30 days, or on August 23, 2026, under the automatic termination provisions of 11 U.S.C. section 362(c)(3)(A).

Likewise, while Plaintiff Abpikar filed a “Emergency Motion to Extend the Automatic Stay” on August 5, 2026,⁸ the federal bankruptcy court Denied that Emergency Motion on August 10, 2026.⁹

Accordingly, even if an automatic stay triggered by Plaintiff Abpikar's July 24, 2026 bankruptcy filing ever applied to this action, that stay has expired.

For all those reasons, there is no stay ever applied to this action or exists now to prevent this Court today from exercising its broad discretion to impose terminating sanctions for Plaintiffs' multiple violations of this Court's March 14, 2025 Orders.¹⁰

⁶ As established by the Bankruptcy Docket of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK50218, which is attached as **Ex. 1** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

⁷ As established by the March 26, 2026 “Order and Notice of Dismissal For Failure to Comply” of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK50218, which is attached as **Ex. 2** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

⁸ As established by the Bankruptcy Docket of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 26-51140, which is attached as **Ex. 3** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

⁹ As established by the August 10, 2026, “Order Denying Motion To Extend Automatic Stay” of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. Case No. 26-51140, which is attached as **Ex. 4** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

¹⁰ As for Plaintiffs remaining arguments in their Opposition, such as their sustained *ad hominem* attacks on defense counsel Todd Roberts (Opposition at pp. 2-6), they are so frivolous and scurrilous that the Court need not and will not address them.

Accordingly, in the broad exercise of its discretion, the Court **GRANTS** Defendant's Motion to impose terminating sanctions to dismiss this case with prejudice now.¹¹

Conclusion & Order

Based on its detailed review of the papers, the record, and all matters of which it has taken Judicial Notice, and in the broad exercise of its discretion, the Court **GRANTS** the Motion of Defendant State Farm to impose Terminating Sanctions now, thereby **DISMISSING THIS CASE WITH PREJUDICE** now.

As this operates as a Judgment of Dismissal on the Merits, Defendant State Farm is **ORDERED** to prepare and file a [Proposed] Judgment within 10 days of today.

SO ORDERED.

Date: September 11, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

¹¹ Finally, because the Court **GRANTS** Defendant's Motion for terminating sanctions, the Court in the broad exercise of its discretion need not and does not choose to reach Defendant's "alternative" arguments for issue and monetary sanctions here.

Line 5

Case Name: *Brett Johnson v. County of Santa Clara, et al.*

Case No.: 24CV453950

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Intervenor Travelers Property Casualty Company of American (“Travelers”) moves under Code of Civil Procedure section 387(a) for leave to file its Complaint in Intervention to seek to recover amounts paid by Travelers to Plaintiff Brent Johnson (“Plaintiff”) for injuries sustained by Plaintiff when his truck was rear-ended by a bus driven by a bus driver employee of Defendant County of Santa Clara. Notice of Motion (the “Motion”) at 1:22-25 (filed: March 25, 2026).

The Motion came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Analysis of the Motion

Under Code of Civil Procedure Section 387(a), Travelers is entitled to intervene in this case to seek to recover amounts paid by Travelers to Plaintiff for alleged injuries to his brain, left wrist, neck, and low back when Plaintiff was involved in a motor vehicle accident when his truck was allegedly rear-ended by a bus driven by a County of Santa Clara bus driver employee in stop-and-go traffic. C.C.P. § 387(a).

Travelers has an interest in this matter within the meaning of Section 387(a) because Travelers so far has paid \$115,666.57 for the workers’ compensation claim filed by Plaintiff arising out of his injuries sustained from the motor vehicle accident here. Declaration of attorney Susan E. Kirkgaard in Support of Motion at ¶ 3 (filed: March 25, 2026). Hence, Travelers asserts that it has a direct pecuniary interest in this case and that it has made a timely application in good faith to intervene in this action. Memo. of Points & Authorities In Support of Motion at 3:1-4:27.

No party argues otherwise. Indeed, no party has opposed the Motion at all, which the Court views as all parties conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).